

DATE OF COUNCIL MEETING: August 24, 2015

TYPE OF DOCUMENT: (__ORDINANCE) (X_RESOLUTION) (__PRELIMINARY PLAT/
PRELIM PUD ZONE CHANGE) (__LEASE/CONTRACT) (CHANGE ORDER/CONTRACT
MODIFICATION) (__CONSIDER BID) (APPLICATIONS/LICENSES/PERMITS)
(APPOINTMENTS) (__ANNOUNCEMENTS/REPORTS/MOTIONS) (__OTHER)

SPONSORS: (ORDINANCE OR RESOLUTION) Bryan Cook

EXACT WORDING FOR AGENDA: A Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Holdrege's Addition, Fourth Filing, a replat of the west 80-feet of Lots 49 and 50 and all those parts of the west 80-feet of Lots 47 and 48 lying and being north of Randall Avenue, Block 7, Amended Plat of Holdrege's Addition, Second Filing, Cheyenne, Laramie County, Wyoming (located at the northeast corner of the intersection of Randall and Snyder Avenues).

(1% Sales Tax Funding/Years)	N/A
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(Other Funding_____)(Grant_____)

CONTACT PERSON: Logan Graves PHONE: 637-6352 DEPT: Planning

OTHER CITY DEPARTMENT AFFECTED: N/A

OTHER GOV'T AGENCIES AFFECTED: N/A

FINANCIAL IMPACT PROPOSED OR CONDITIONS WHICH AFFECT CITY: N/A

CONTRACT TERM: N/A

	YES	NO	N/A
Is funding budgeted?	()	()	(<u>X</u>)
Were Bids called for?	()	()	(<u>X</u>)
Affected parties notified of Council procedure and dates?	(<u>X</u>)	()	()
Has bond, insurance or other security been arranged?	()	()	(<u>X</u>)
Have legal descriptions been checked?	(<u>X</u>)	()	()

Agenda Item approved / reviewed by :

Risk Mgr (☐) City Attorney (☐) Dept. Head (☒)

General Comments: The City of Cheyenne Planning Commission recommended approval of the above described Final plat, advancing it to the Governing Body, at their meeting on August 3, 2015, by a vote of 6-0. See the attached staff report for more definitive information.

Submitted by: Brandon Cammarata Title: Dev Director Date: August 19, 2015

UPON PASSAGE OF THE AGENDA ITEM, COPIES SHOULD BE SENT TO:

Engineering Tech Branch City Clerk's Office

Development Office Building Safety Office

Date: 7/29/15

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR HOLDREGE'S ADDITION, FOURTH FILING, A REPLAT OF THE WEST 80 FEET OF LOTS 49 AND 50 AND ALL THOSE PARTS OF THE WEST 80 FEET OF LOTS 47 AND 48 LYING AND BEING NORTH OF RANDALL AVENUE, BLOCK 7, AMENDED PLAT OF HOLDREGE'S ADDITION, SECOND FILING, CHEYENNE, LARAMIE COUNTY, WYOMING (LOCATED AT THE NORTHEAST CORNER OF THE INTERSECTION OF RANDALL AND SNYDER AVENUES)."

WHEREAS, Andrew Krance has subdivided said land in accordance with the statutes in such cases made and provided; and

WHEREAS, Andrew Krance, the owner of the above described land, has caused a subdivision plat of said land to be made, acknowledged, and certified, particularly describing the lot and block; and

WHEREAS, the above described subdivision plat has been presented to the City of Cheyenne Planning Commission for consideration; the Planning Commission has recommended that said plat be approved by the governing body; and the plat has been duly executed by the Development Office; and

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the subdivision described as Holdrege's Addition, Fourth Filing, a replat of the west 80 feet of Lots 49 and 50 and all those parts of the west 80 feet of Lots 47 and 48 lying and being north of Randall Avenue, Block 7, amended plat of Holdrege's Addition, Second Filing, Cheyenne, Laramie County, Wyoming, be and the same hereby is approved and confirmed as presented, and that the Mayor and the City Clerk be and are hereby authorized, empowered, and directed to execute said plat, when Community Facility Fees have been paid in full.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF

_____, 2015.

RICHARD L. KAYSEN, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

STAFF REPORT - SUMMATION

Holdrege's Addition, Fourth Filing

Expedited Preliminary Plat Process

CASE NUMBER: UDC-15-00411

SUBDIVISION CODE: HOL

PREPARED BY: Logan Graves

MEETING DATES: August 3, 2015 – Planning Commission
August 24, 2015 – City Council

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff.

- Complete Application
- Preliminary Plat Map
- Final Plat Map
- Drainage Worksheet
- Transportation Worksheet
- Environmental Impact Assessment

RECOMMENDATION: The Development office recommends approval of the Expedited Preliminary Plat, advancing the Final Plat to the Governing Body.

PLANNING COMMISSION UPDATE (8/3/15): At its regular meeting on August 3, 2015, the Planning Commission recommended approval of the Holdrege's Addition, Fourth Filing Expedited Preliminary Plat, advancing the Final Plat to the Governing Body.

CITY COUNCIL RECOMMENDATION: The Development Department recommends approval of the Final Plat.

STAFF REPORT

Holdrege's Addition, Fourth Filing

Expedited Preliminary Plat Process

CASE NUMBER: UDC-15-00411 **SUBDIVISION CODE:** HOL
PREPARED BY: Logan Graves
MEETING DATES: August 3, 2015 – Planning Commission
August 24, 2015 – City Council

OWNER: Patricia Linehan
109 Princeton Road
Ft. Collins, CO 80525

Mini Mart Inc
No 115MM
442 Keeler Parkway
Pueblo, CO 81001

Doris M. Zolnoski Revocable Trust
6525 Foxglove Drive
Cheyenne, WY 82009

AGENT: Brad Emmons 307.637.6017
AVI Professional Corporation
1103 Old Town Lane
Cheyenne, WY 82009

PROJECT: Holdrege's Addition, Fourth Filing Expedited Plat

LOCATION:

1. Legal Description: A replat of the west 80-feet of Lots 49 and 50 and all those parts of the west 80-feet of Lots 47 and 48 lying and being north of Randall Avenue, Block 7, Amended Plat of Holdrege's Addition, Second Filing
2. Location: Northeast corner of Randall & Snyder Avenue
3. Address: 820 Randall Avenue

SIZE: Total site:

CURRENT ZONING: MR-1 Medium-Density Residential-Established & NB Neighborhood Business

PROPOSED ZONING: NB Neighborhood Business

EXISTING LAND USE: Automobile Service Station - Limited

PROPOSED LAND USE: Automobile Service Station - Limited

SURROUNDING LAND USES:

SURROUNDING	LAND USE(S)	ZONING	JURISDICTION
North	Residential	MR-1	City
South	Commercial/ Residential	MUR	City
East	Residential	MR-1	City
West	City ROW	MR-1	City

EXPEDITED REVIEW:

This plat is being pursued as an expedited application. An expedited review process is a concurrent preliminary and final plat. A project may be eligible for an expedited review when the proposal contains no significant planning, design and engineering issues. In other words proposals that meet all applicable regulations and generally meet the review criteria for preliminary and final plat may be eligible for the concurrent preliminary and final plat process.

Staff recommends allowing the plat to proceed as an expedited application.

EXECUTIVE SUMMARY:

The expedited preliminary plat before you is for approximately 13,365 square feet of land located at the northeast corner of the intersection of Randall and Snyder Avenues. This application was submitted in conjunction with a zone change application to provide consistent zoning across the entire subject site to NB Neighborhood Business. The purpose of this plat application is to combine three platted lots into a single lot. The NB Neighborhood Business zone district and the district regulations are designed to encourage uses like convenience stores, while also protecting the abutting and nearby residential areas. This application is in compliance with the comprehensive plan, reflects sound planning principles, and is not anticipated to have any undue influence on present or future development of adjacent parcels.

Due to meeting the review criteria found in Section 2.1.2.d of the Cheyenne Unified Development Code (UDC), staff recommends approval of this expedited preliminary plat, advancing the final plat to the Governing Body.

PLAT DATA: In reviewing, providing comments, and making recommendations and decisions on a proposed preliminary plat, the Staff, Planning Commission and City Council shall use the following criteria:

PLANCHEYENNE - *The application is in accordance with the development policies and physical patterns identified in the PlanCheyenne.*

The future land use map, which is described in PlanCheyenne, has designated this area as Urban Residential. Urban Residential areas are intended for a variety of residential types, including single-family residences, duplexes, patio homes, townhomes, condominiums, and apartments. Secondary uses include open spaces and recreation, schools, places of worship, and other public or civic uses are encouraged. The NB zone district can work within the Urban Residential area. NB has more restrictions on the uses allowed and is intended to service the convenience shopping needs of a neighborhood. They are characterized by a compact scale and pedestrian-friendly design that provides ease of access from adjacent neighborhoods.

PLANNING - *The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities.*

The application is in conformance with the design principles of the zoning code and the subdivision regulations and further, is consistent with PlanCheyenne as noted above. This application proposes to create a single lot and block for an existing commercial use immediately adjacent to Randall and Snyder Avenues, ultimately creating a site that is more suited to redevelopment, should that opportunity ever arise.

STANDARDS - *Division of land meets the purposes, intent, and all applicable standards in Article 4.*

Transportation Network:

There are not any new rights-of-way proposed with plat.

Community Facility Fees:

Park Fees:

No fees will be assessed as the application meets one of the exemptions under 4.2.5.c.

Open Space:

Open Space was evaluated at the time of the Site Plan according to the standards set forth by the Cheyenne UDC.

PHASING - *Any phasing proposed in the application is clearly indicated and demonstrates a logical and well-planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned.*

There are no proposed phases for this plat.

STUDIES - *The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts.*

A drainage worksheet and transportation worksheet were submitted with the application. After a review, the worksheets were found to be satisfactory by the Engineering Department.

ZONING - *All proposed lots shall be buildable lots according to the existing or proposed zoning district standards, and result in site design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district. All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance.*

The NB District is intended for Retail, Employment, Service and Civic uses to support adjacent residential neighborhoods in meeting most of the daily needs of residents within close proximity to dwellings. It's applicable in areas where small-scale retail and services are desired to support adjacent residential uses.

The site fits into a well-connected road network, and design standards are in place to assure transitions to adjacent sites while minimizing impacts on surrounding areas. The district regulations are designed to encourage uses like gas stations and convenience stores, while also protecting the abutting and nearby areas.

SURROUNDING DEVELOPMENT - *The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property.*

This plat should not create any undue influence on existing or potential development within the area.

REVIEWING AGENCIES WITH COMMENTS:

- City Surveyor (Jack Studley)
 - o Boundary data and legal descriptions appear in order.
- County Assessor (Clarice Blanton)
 - o The Doris M. Zolnoski Revocable Trust is being assessed for HOLDREGE'S ADDITION, 2ND FILING, AMENDED: WEST 80' LOTS 49 & 50, POR WEST 80' OF LOTS 47 & 48 LYING AND BEING NORTH OF RANDALL AVE, BLOCK 7.
 - o Patricia Linehan is being assessed for HOLDREGE'S ADDITION, 2ND FILING, AMENDED: EAST 60' OF NORTH 10' OF LOT 48, EAST 60' OF LOTS 49 & 50, BLOCK 7.
 - o The Mini Mart Inc. No. 115MM is being assessed for HOLDREGE'S ADDITION, 2ND FILING, AMENDED: ALL OF LOT 45, THE EAST 60' OF LOT 46, THE EAST 60' OF LOT 47, THE EAST 60' OF THE SOUTH 15' OF LOT 48, ALL LYING NORTH OF RANDALL AVE, BLOCK 7. ALSO DESC AS: ALL OF LOT 45, LYING NORTH OF RANDALL AVE; ALL OF THE EAST 60' OF LOT 46, LYING NORTH OF RANDALL AVE; ALL OF THE EAST 60' OF LOT 47, LYING NORTH OF RANDALL AVE AND THE EAST 60' OF THE SOUTH 15' OF LOT

48, ALL IN BLOCK 7, HOLDREGE ADDITION, 2ND FILING.

- Unless ownership is transferred to one individual or company the three owners listed above will be shown as joint owners.

REVIEWING AGENCIES WITHOUT COMMENTS:

- Engineering Department – General (Nathan Beauheim)
- Engineering Department – Drainage (Mike Vinson)
- Engineering Department – GIS/Tech (Gary Stogsdill)
- Board of Public Utilities (Linda Gunter)
- Building Department (Amanda Barto)
- Charter (Kurt Quinlivan)
- Cheyenne Light, Fuel & Power (Jack Wyatt)
- Development Department (Brandon Cammarata)
- Engineering Department – General (Nathan Beauheim)
- Engineering Department – Traffic (Nathan Beaheim)
- Fire Department (Jim Schamerhorn)
- Laramie County School District #1 (Chris Hout)
- Suncor Pipeline (Megan Romano)
- Urban Planning (Matt Ashby)

REVIEWING AGENCIES NOT RESPONDING:

- CenturyLink (Bob Bates)
- County Attorney (Mark Voss)
- County Clerk (Vicki Swanson)

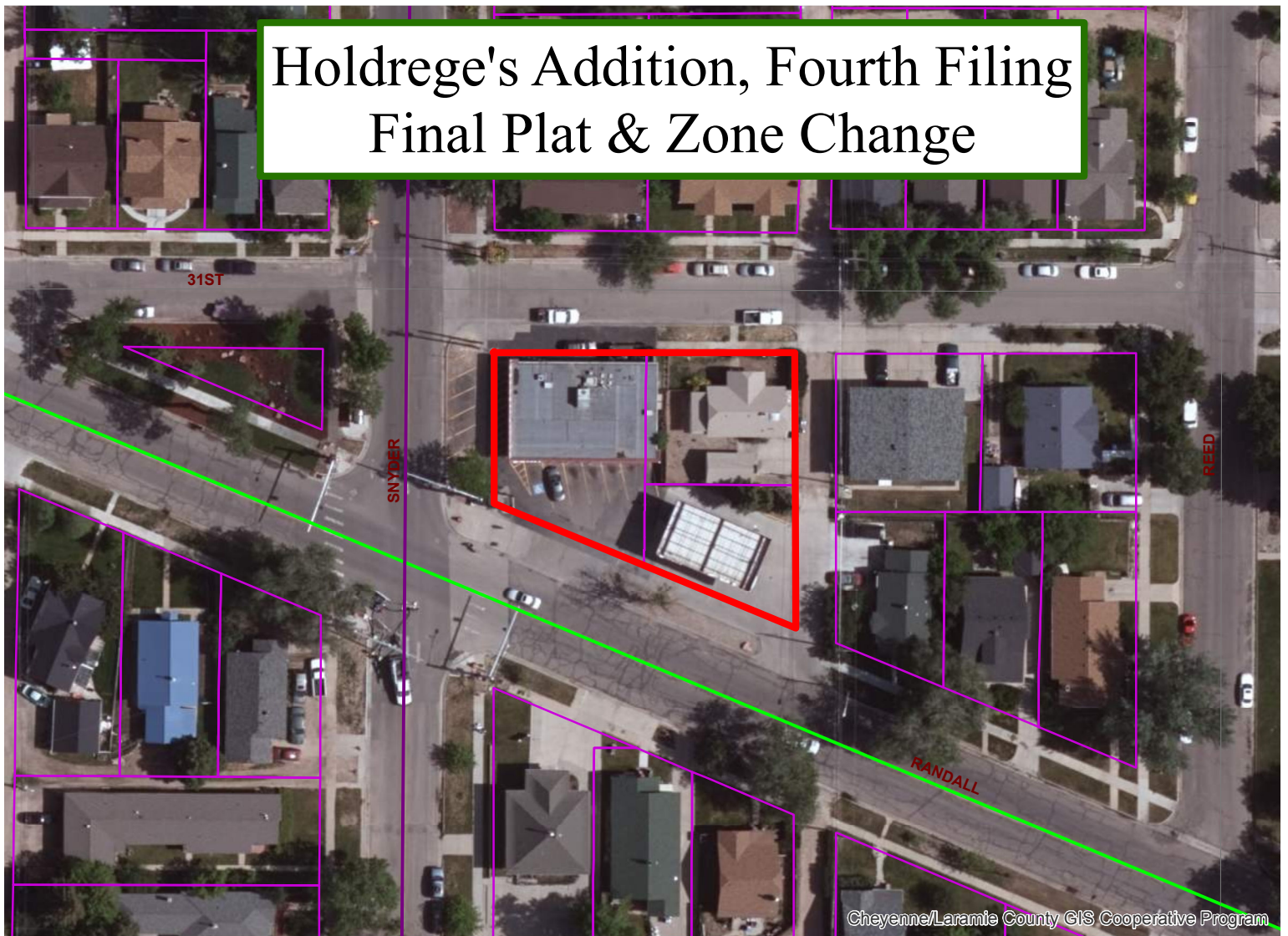
OTHER COMMENTS RECEIVED:

- None

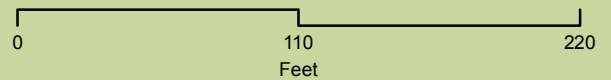
Encl: Preliminary Plat Map
Final Plat Map
Aerial Map

cc: Owner
Agent/Applicant
File

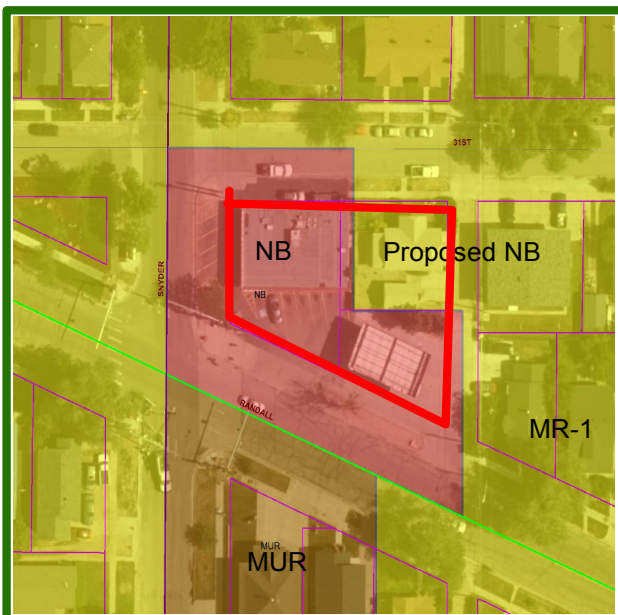
Holdrege's Addition, Fourth Filing Final Plat & Zone Change



Applicant: Doris Zolnoski, Patricia Linehan, Mini Mart No 115MM
 Agent: Brad Emmons, AVI Professional Corporation
 Application Numbers
 Final Plat: UDC-15-00411
 Zone Change: UDC-15-00412



Zone Districts



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use

